ComplyTrack India

Indian Compliance Laws Guide

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Sectors Covered: 1

Total Regulations: 12

Disclaimer: This document is for informational purposes only.
Always refer to official government sources for legal compliance.

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1. Agriculture & Food Processing

12 regulations

Agriculture & Food Processing

Source: https://agricoop.nic.in

1 Agricultural Produce Market Committee Act (State Laws)

Section: State-specific Provisions

Regulates marketing of agricultural produce through APMCs. Establishes regulated market yards and licensing of traders.

Key Requirements:

- License from APMC for trading in agricultural produce
- Payment within prescribed time limits
- Adherence to minimum support prices (MSP)
- Market fee payment
- Entry in market records
- Compliance with APMC bylaws

Penalties for Non-Compliance:

Fine and cancellation of license for violations.

Source: https://agricoop.nic.in

2 Essential Commodities Act, 1955

Section: Sections 1-14

Controls production, supply, and distribution of essential commodities including food items.

Key Requirements:

- Stock limits for essential commodities
- License for storage and distribution
- Price control compliance
- Anti-hoarding measures
- Quality standards adherence

Penalties for Non-Compliance:

Section 7: Imprisonment up to 6 months and/or fine up to Rs. 1,000.

Source: https://agricoop.nic.in

3 Food Safety and Standards Act, 2006

Section: Sections 1-73

Regulates food safety and standards for all food businesses including agricultural produce processors.

Key Requirements:

- FSSAI registration/license
- Food safety management system
- Hygiene and sanitary practices
- Labeling and packaging compliance
- Traceability system
- Testing and quality assurance
- Worker health and hygiene

Penalties for Non-Compliance:

Section 63: Imprisonment up to 6 months and fine up to Rs. 1 lakh.

Source: https://www.fssai.gov.in

4 Seeds Act, 1966

Section: Sections 1-45

Regulates quality and sale of seeds. Ensures availability of genuine quality seeds to farmers.

Key Requirements:

- Seed certification from state certification agency
- Seed testing and quality standards
- Labeling requirements for seed packets
- Registration of seed varieties
- Seed dealer licensing
- Minimum seed purity standards

Penalties for Non-Compliance:

Section 15: Fine up to Rs. 1,000 for first offence. Section 16: Imprisonment up to 6 months for repeated offences.

Source: https://agricoop.nic.in

5 Plant Variety Protection and Farmers Rights Act, 2001

Section: Sections 1-73

Protects plant varieties and recognizes farmers rights. Implements UPOV Convention in India.

Key Requirements:

- Plant variety registration
- Farmers right to save, use, sow and resow seeds
- Benefit sharing with farmers
- Compulsory licensing provisions
- Protection for 15-18 years
- Biodiversity register maintenance

Penalties for Non-Compliance:

Fine up to Rs. 5 lakh for infringement of registered varieties.

Source: https://plantauthority.gov.in

6 Insecticides Act, 1968

Section: Sections 1-36

Regulates import, manufacture, sale, and use of insecticides in India.

Key Requirements:

- Registration of insecticides with CIB&RC
- Insecticide dealer licensing
- Safe handling and storage
- Labeling and packaging standards
- Restricted use zones
- Record maintenance

Penalties for Non-Compliance:

Section 29: Fine up to Rs. 1,000 for general offences. Section 30: Imprisonment up to 1 year for serious violations.

Source: https://agricoop.nic.in

7 Fertilizer Control Order, 1985

Section: Regulatory Framework

Regulates manufacture, sale, and distribution of fertilizers in India.

Key Requirements:

- Fertilizer licensing under FCO
- Quality standards compliance
- MRP (Maximum Retail Price) adherence
- Labeling requirements
- Testing and certification
- Distribution norms

Penalties for Non-Compliance:

Imprisonment up to 1 year and fine up to Rs. 1,000.

Source: https://agricoop.nic.in

8 Agricultural Produce Grading and Marking Act, 1937

Section: Sections 1-16

Provides for grading and marking of agricultural and other produce.

Key Requirements:

- AGMARK certification
- Grading as per prescribed standards
- Use of AGMARK for graded produce
- Quality testing by approved laboratories
- Record keeping

Penalties for Non-Compliance:

Fine up to Rs. 500 for misuse of AGMARK.

Source: https://agmarknet.gov.in

9 Land Acquisition Act, 2013

Section: Sections 1-104

Regulates acquisition of land for public purposes including industrial and infrastructure projects.

Key Requirements:

- Social Impact Assessment (SIA)
- Consent of affected families (80%)
- Fair compensation at market value
- Rehabilitation and resettlement
- R&R package for affected families
- Gram Sabha consent

Penalties for Non-Compliance:

Imprisonment up to 3 years and fine for unauthorized acquisition.

Source: https://landresource.nic.in

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Rural Employment and Agriculture

Section: MGNREGA & PM-KISAN

Schemes and regulations for rural employment guarantee and farmer welfare.

Key Requirements:

- MGNREGA: 100 days guaranteed employment
- Wage payment within 15 days
- Worksite facilities
- Social audit
- PM-KISAN: Direct benefit transfer
- Farmer registration

Penalties for Non-Compliance:

Administrative action for non-implementation.

Source: https://nregastrep.nic.in

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Pesticide Management Bill

Section: Proposed Legislation

Proposed bill to replace Insecticides Act, 1968. Regulates pesticide registration, manufacture, sale, and use.

Key Requirements:

- Pesticide registration with Central Insecticide Board
- Safety testing and data submission
- Environmental impact assessment
- Proper labeling and packaging
- Dealer licensing
- Restrictions on hazardous pesticides

Penalties for Non-Compliance:

Enhanced penalties for violations.

Source: https://agricoop.nic.in

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Agricultural Produce (Grading and Marking) Rules

Section: AGMARK Standards

Prescribes standards for grading of agricultural commodities.

Key Requirements:

- Grading as per BIS standards
- Use of AGMARK logo
- Quality testing by approved labs
- Certification for export
- Periodic renewal of certification

Penalties for Non-Compliance:

Fine and cancellation of grading certificate.

Source: https://agmarknet.gov.in

Appendix

Official Government Sources

- **Reserve Bank of India (RBI)**
  https://www.rbi.org.in
- **Securities and Exchange Board of India (SEBI)**
  https://www.sebi.gov.in
- **Ministry of Corporate Affairs (MCA)**
  https://www.mca.gov.in
- **Income Tax Department**
  https://www.incometax.gov.in
- **GST Council**
  https://www.gstcouncil.gov.in
- **Central Board of Direct Taxes (CBDT)**
  https://www.cbdt.gov.in
- **Ministry of Labour & Employment**
  https://labour.gov.in
- **Employees Provident Fund Organisation (EPFO)**
  https://www.epfindia.gov.in
- **Employees State Insurance Corporation (ESIC)**
  https://www.esic.nic.in
- **Ministry of Environment, Forest & Climate Change**
  https://moef.gov.in
- **Central Pollution Control Board (CPCB)**
  https://cpcb.nic.in
- **Food Safety and Standards Authority of India (FSSAI)**
  https://www.fssai.gov.in
- **Central Drugs Standard Control Organisation (CDSCO)**
  https://cdsco.gov.in
- **National Medical Commission (NMC)**
  https://www.nmc.org.in
- **Telecom Regulatory Authority of India (TRAI)**
  https://www.trai.gov.in
- **Indian Computer Emergency Response Team (CERT-In)**
  https://www.cert-in.org.in

Important Notes

- This document is generated for informational purposes only.
- Always refer to official government websites for the latest regulations.
- Laws and regulations are subject to amendments and updates.
- Consult legal professionals for specific compliance advice.
- Some regulations may have state-specific variations.